

COMPLETE LEARNING SESSION

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

The federal-design test



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 12 - Federal System - Complete Topic Package

Subject: Indian Polity | **Topic:** 12 | **GS-II + Prelims** | **Export date:** 2026-08-16 **Approval:** false - awaiting explicit user approval. **Evidence key:** [FACT] constitutional, judicial or source-verified proposition; [ANALYSIS] reasoned exam synthesis; [CURRENT] dated status; [LIMIT] qualification preventing overstatement.

Package method, scope boundary and current control

- Source order followed: certified Core owner Polity/basic/Federal-System.md -> optional Advanced owner Polity/advanced/12_Federal-System.md -> local PYQ routing ledgers -> Constitution, Supreme Court and official current controls -> Qdrant not used.
- [LIMIT] Foundation and Core are independently answer-complete. Optional Advanced adds scholar labels and deeper classifications only. Skipping it does not remove a provision, doctrine, case, current control, PYQ route or answer framework required for marks.
- [CURRENT] Legal and policy status is controlled to **16 August 2026, Asia/Kolkata**.
- [CURRENT] The standard examination counts used here are **Union List 100, State List 61 and Concurrent List 52**. Omitted and inserted entry numbers can make a literal count of visible live clauses look different; quote the standard subject counts unless a question reproduces the Schedule itself.
- [CURRENT] For Governor assent, the controlling position is the Constitution Bench advisory opinion of **20 November 2025**: no judicially fixed timelines and no deemed assent, but prolonged unexplained inaction can attract limited judicial direction to act.
- [CURRENT] The Constitution (131st Amendment) Bill, 2026 and connected delimitation package were defeated in Lok Sabha. Their proposed numbers are not law. The Census 2027 schedule does not establish a publication date, delimitation date or a women's-reservation election date.
- [LIMIT] This package owns federal **architecture and concepts**. Detailed legislative, administrative and financial Centre-State mechanisms are cross-linked to Polity 13; Governor procedure to Polity 19; Finance Commission to Polity 29; GST Council to Polity 33; inter-State bodies and water disputes to Polity 14.
- Package target: **5 routed PYQs, 28 original hard MCQs, 8 remedials, 7 original solved Mains questions, and 14 original visuals**.

Roadmap

Stage	Complete coverage	Exam outcome
Meaning	Federal test, federal versus unitary, federation versus confederation	Defines before evaluating
Formation	Coming-together and holding-together models	Places India correctly
Federal features	Seven structural safeguards	Solves direct Prelims questions
Centralising features	Fourteen features grouped by logic	Explains the strong-Union tilt
Power distribution	Articles 245-255, Seventh Schedule, residuary power and doctrines	Solves lists and conflict questions
State-field entry	Articles 249, 250, 252, 253 and 356	Prevents exception traps
Judicial doctrine	West Bengal, Kesavananda, Rajasthan and Bommai	Uses federalism as Basic Structure
Working modes	Cooperative, competitive, bargaining, coercive and confrontational	Answers the 2020 GS-II demand
Institutions	ISC, Zonal Councils, GST Council, Finance Commission, NITI and courts	Links architecture to operation
Asymmetry	Fifth/Sixth Schedules, Article 371 family and differentiated UT designs	Explains accommodation
Fiscal dimension	Assignment, devolution, grants, cesses and 16th FC control	Adds contemporary depth
Representation	Rajya Sabha, seat freeze, delimitation and demographic fairness	Handles emerging federalism debate
Advanced	Scholars, quasi-federal debate, multi-level and dialogic federalism	Optional analytical lift
Practice	All routed PYQs, 36 MCQs and seven solved Mains	Converts knowledge into marks

Scope ownership and cross-links

- This chapter is self-sufficient on the nature, structure, tilt, interpretation and working modes of Indian federalism.
- Detailed Articles 256-263, Union directions, All-India Services and emergency effects -> **Polity 13**.
- Inter-State Council, Zonal Councils and water disputes in operational depth -> **Polity 14**.
- Governor appointment, discretion, assent and floor-test procedure -> **Polity 19**.
- Finance Commission formula, grants and local-body transfers -> **Polity 29**.
- GST constitutional mechanics and Council voting -> **Polity 33**.
- Fifth/Sixth Schedules and Article 371 State-specific detail -> **Polity 43-44**.
- [LIMIT] Cross-linking avoids duplication; every rule necessary to answer Topic 12 remains explained here.

PART I - Complete Foundation and Core learning session

01. Meaning: what makes a political system federal?

The federal-design test



Federal design is tested through levels, constitutional allocation, adjudication, rigidity and coordinated autonomy.

The controlling definition

- [FACT] Federal government constitutionally divides public power between a general government and regional governments so that each operates directly on citizens within an assigned sphere.
- [FACT] The allocation comes from the Constitution, not from ordinary delegation by the Union.
- [ANALYSIS] The essence is **constitutionally protected autonomy plus mechanisms of shared rule**. Neither complete separation nor constant harmony is required.
- [LIMIT] A federation is not a confederation. In a federation, the Constitution creates one sovereign legal order; constituent units ordinarily have no unilateral right to secede.

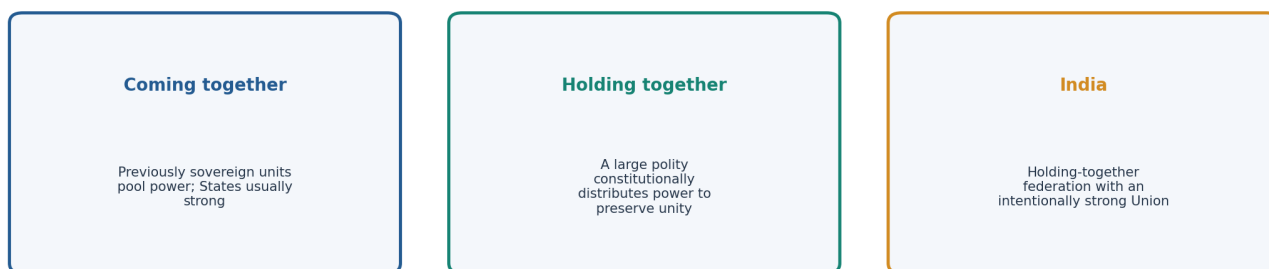
Federal, unitary and confederal systems

Test	Federal	Unitary	Confederation
Source of regional power	Constitution	Central law/devolution	Treaty among sovereign members
Legal sovereignty	One constitutional order	Central State	Member States retain sovereignty
Regional autonomy	Constitutionally protected	Legally alterable by centre	Very high
Central action on citizens	Direct	Direct	Often mediated through members
Secession	Not ordinarily permitted	Not applicable	May remain politically possible

Core thesis: Federalism is not measured by the weakness of the Union; it is measured by whether regional autonomy has constitutional, judicial and political protection.

02. Formation: coming together and holding together

How federations are formed



Coming-together and holding-together federations differ in origin and bargaining structure.

Model	Formation logic	Typical structural tendency	Example use
Coming together	Previously sovereign units pool authority	Stronger constituent units; often equal second-chamber representation	United States, Switzerland, Australia
Holding together	A large polity distributes authority to preserve unity and diversity	Stronger federal centre; asymmetry more likely	India, Belgium, Spain in comparative discussion

- [FACT] Article 1 calls India a **Union of States**, not a federation formed by an agreement among sovereign States.
- [FACT] Parliament may alter State areas, boundaries or names under Articles 2-4 through the constitutionally prescribed process; affected State views are sought but are not binding.
- [ANALYSIS] India is best classified as a **holding-together federation with a strong Union**: federal distribution was chosen to govern diversity without creating a secession-based compact.
- [LIMIT] “Indestructible Union of destructible States” is a useful summary, not constitutional text.

03. Seven federal features

Seven federal features



Seven features protect constitutionally distributed government.

1. **Dual polity**: Union and State governments each exercise constitutionally assigned authority.
2. **Written Constitution**: allocation and limits are available in an authoritative text.
3. **Division of powers**: Articles 245-255 and the Seventh Schedule allocate legislative competence.
4. **Constitutional supremacy**: Union and States are limited by the Constitution.
5. **Rigidity in federal provisions**: specified Article 368 amendments require ratification by at least half of State legislatures.
6. **Independent judiciary**: constitutional courts police legislative boundaries and federal disputes.

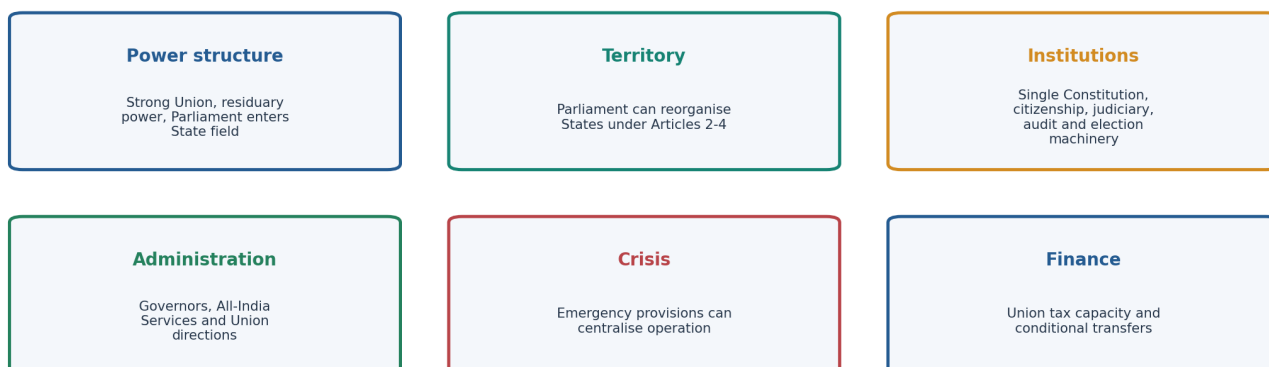
7. **Bicameralism:** Rajya Sabha supplies representation of States in Parliament.

Qualifications UPSC rewards

- Rajya Sabha representation is broadly population-weighted, not equal for every State as in the US Senate.
- State autonomy is protected but not sovereign; Parliament has constitutionally enumerated routes into the State field.
- The judiciary is integrated rather than dual, yet integration can strengthen uniform constitutional adjudication.
- Indian amendment rigidity is selective: many provisions are amendable without State ratification.

04. Centralising features: why India is federal with a Union bias

Centralising design: grouped, not memorised as a loose list



Centralising features are easier to retain when grouped by power, territory, institutions, administration, crisis and finance.

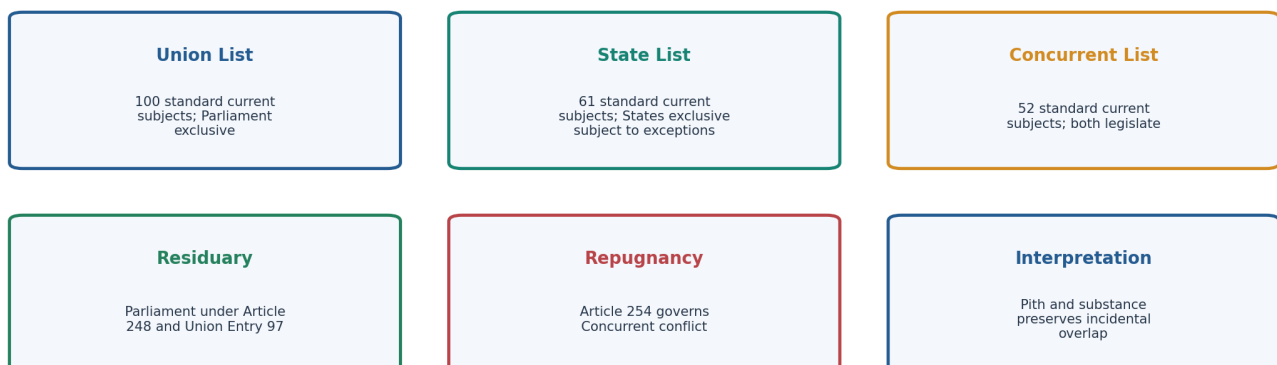
Fourteen features, grouped

Group	Centralising feature	Constitutional significance
Power	Strong Union List and superior Union competence in overlap	National coordination capacity
Power	Residuary legislative power with Parliament	Article 248 + Union Entry 97
Power	Parliament may legislate on State subjects through Articles 249, 250, 252, 253 and 356	State exclusivity has express exceptions
Territory	Parliament may reorganise States	Union is not a compact requiring State consent
Constitution	One Constitution for Union and States	No separate State constitutions in the ordinary scheme
Citizenship	Single citizenship	Common national political membership
Judiciary	Integrated court hierarchy	Uniform constitutional and legal order
Administration	Governor appointed by President and holding office during presidential pleasure	Potential Union influence, subject to constitutional limits
Administration	All-India Services	Common administrative cadre serving Union and States
Administration	Union directions in specified fields	Coordination may become leverage
Institutions	Integrated Election Commission, CAG and other national machinery	Uniform standards and accountability
Crisis	Emergency provisions	Federal operation can become strongly centralised
Finance	Greater Union tax capacity and transfer dependence	Vertical fiscal imbalance
Representation	Rajya Sabha gives unequal State representation and Lok Sabha is population-based	Large States possess greater numerical weight

- [ANALYSIS] These do not cancel federalism because each centralising power is itself constitutional, reviewable and politically contested.
- [LIMIT] Do not call the Governor merely the "Centre's agent." That phrase describes a misuse critique; the office is constitutionally the State's head.

05. Legislative distribution: Articles 245-255 and the Seventh Schedule

Legislative distribution



The three Lists, residuary power, repugnancy and interpretive doctrines form one competence system.

The Article 246 hierarchy

- [FACT] Article 245 addresses territorial extent of laws. Parliamentary law is not invalid merely for extra-territorial operation, though a real constitutional nexus is required.
- [FACT] Article 246(1) gives Parliament exclusive power over Union List matters, notwithstanding clauses (2) and (3).
- [FACT] Article 246(2) gives Parliament and State legislatures concurrent power over List III.
- [FACT] Article 246(3), subject to clauses (1) and (2), gives States exclusive power over List II for the State or its part.
- [FACT] Article 246(4) permits Parliament to legislate for territories not included in a State even on State List matters.
- [FACT] Article 246A separately creates special GST competence.

Standard current list counts

List	Standard current examination count	Character	Examples
Union List	100	Parliament exclusive	Defence, foreign affairs, currency, atomic energy
State List	61	State exclusive subject to constitutional exceptions	Public order, police, public health, agriculture, prisons
Concurrent List	52	Both Parliament and States	Criminal law, marriage, education, forests

- [LIMIT] Amendments preserve historical numbering and mark some entries “omitted”; inserted entries also carry lettered numbers. This explains why a literal visual count may differ from the standard subject count.
- [FACT] Article 248 and Union List Entry 97 place residuary legislative power with Parliament, including residuary taxation subject to later GST design.

Five competence doctrines

Doctrine	Function	Exam-safe formulation
Pith and substance	Identifies a law's true nature	Incidental encroachment does not invalidate a law within competence
Colourable legislation	Tests indirect transgression	What cannot be done directly cannot be done by disguise
Territorial nexus	Connects State law to extra-State facts	Nexus must be real, not illusory
Harmonious construction	Reconciles apparently overlapping entries	Entries receive broad meaning while avoidable conflict is reduced
Repugnancy	Resolves Concurrent List conflict	Article 254 ordinarily gives parliamentary law precedence

Article 254 and Presidential assent

- [FACT] If a State law is repugnant to a parliamentary law on a Concurrent subject, the parliamentary law ordinarily prevails and the State law is void to the extent of repugnancy.
- [FACT] A repugnant State law reserved for and receiving Presidential assent can operate in that State.
- [FACT] Parliament may later override that assented State law.
- [LIMIT] Article 254 is not a universal conflict clause for every Union-State disagreement; it is principally a Concurrent List doctrine.

06. When Parliament may legislate on the State List

How Parliament may enter the State List



Five constitutional routes permit Parliament to enter the State field for different reasons and durations.

Route	Trigger	Duration / consequence	Key trap
Article 249	Rajya Sabha resolution by two-thirds of members present and voting that national interest requires it	Resolution up to one year, renewable; law survives six months after resolution ends	State power is suspended only to the extent of inconsistency
Article 250	Proclamation of Emergency in operation	Law survives six months after Emergency ends	Requires Article 352 emergency, not every emergency
Article 252	Two or more State legislatures request Parliament	Applies to requesting/adopting States	Only Parliament can amend or repeal such law
Article 253	Implementing treaty, agreement or international decision	No State consent requirement in text	Can reach State subjects
Article 356	Parliament exercises State legislature's power during President's Rule	Subject to constitutional restoration and review	Bommai limits abuse

- [ANALYSIS] Articles 249 and 252 contain federal safeguards: the first uses the States' chamber; the second starts with State initiative.
- [LIMIT] Article 253 is powerful but remains subject to constitutional rights, judicial review and the actual treaty-implementation nexus.

07. Federalism as Basic Structure: case chronology

Federalism in constitutional adjudication



The case chain moves from strong-Union description to enforceable basic-structure protection.

Case	Deployable proposition	Qualification
<i>State of West Bengal v. Union of India</i> (1962)	India was not formed by an agreement among sovereign States; Parliament possessed the challenged acquisition competence	Strong-Union description did not erase all State autonomy
<i>Kesavananda Bharati</i> (1973)	Parliament's amending power is limited by Basic Structure	Federalism later becomes a named component
<i>State of Rajasthan v. Union of India</i> (1977)	Recognised the Union-weighted constitutional scheme while reviewing Article 356-related conflict cautiously	Predates Bommai's stronger review framework
<i>S.R. Bommai v. Union of India</i> (1994)	Federalism is a Basic Structure feature; Article 356 proclamations are reviewable; majority ordinarily belongs on the House floor	Does not make India a compact of sovereign States
<i>Kuldip Nayar v. Union of India</i> (2006)	Rajya Sabha residence requirement was not indispensable to federalism; Indian federalism has distinctive design	Do not infer that State representation is irrelevant

Bommai answer value

1. Converts federalism from description into a constitutional limitation.
2. Restrains partisan dismissal of State governments.
3. Supports floor tests where majority is disputed.
4. Allows restoration after an unconstitutional proclamation.
5. Shows that a strong Union remains bounded by constitutional federalism.

08. How Indian federalism actually works

Indian federalism operates in simultaneous modes



Cooperation, competition, bargaining, coercion and confrontation operate at the same time.

Mode	Meaning	Indian illustrations	Analytical limit
Cooperative	Joint rule-making or implementation	GST Council, disaster response, centrally supported schemes	Cooperation may reflect unequal bargaining power
Competitive	States compete on outcomes and investment	Reform rankings, investment summits, policy innovation	Can widen capacity gaps
Bargaining	Outcomes emerge through negotiation	Finance Commission representations, coalition politics, scheme design	Bargaining power varies

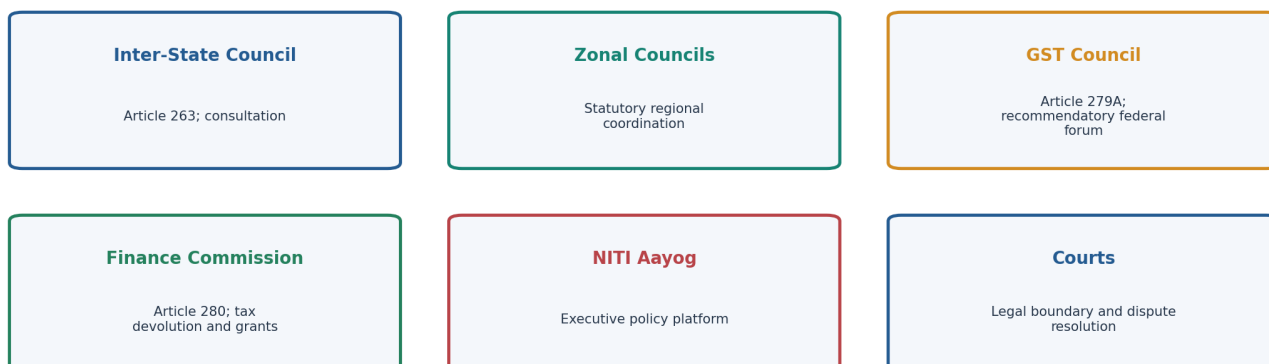
Mode	Meaning	Indian illustrations	Analytical limit
Coercive	Union leverage narrows effective State choice	Conditional grants, directions, investigative or gubernatorial pressure claims	Not every national standard is coercive
Confrontational	Governments litigate or resist	CBI consent disputes, Governor assent, fiscal and river-water conflict	Conflict can remain constitutional and productive

The 2020 GS-II verdict

- [ANALYSIS] Indian federalism is not moving linearly from cooperation to confrontation. The five modes coexist by sector and political alignment.
- [ANALYSIS] Granville Austin's "cooperative federalism" identifies design aspiration; Morris-Jones's "bargaining federalism" better captures negotiated operation.
- [ANALYSIS] The health test is whether institutions convert confrontation into reasons, negotiation, adjudication and electoral accountability.

09. Institutions of shared rule

Institutions that channel intergovernmental relations



Federal institutions provide political, fiscal, administrative and judicial channels.

Institution	Constitutional/statutory base	Federal function
Inter-State Council	Article 263; established by presidential order	Inquiry, discussion and recommendations on common interests
Zonal Councils	States Reorganisation Act, 1956	Regional coordination; North Eastern Council is separately statutory
GST Council	Article 279A	Union-State tax negotiation and harmonisation
Finance Commission	Article 280	Vertical and horizontal tax devolution and grants
NITI Aayog	Executive resolution	Policy consultation, data and programme coordination
Supreme Court	Articles 131, 136, 226/32 framework and judicial review	Adjudicates legal boundaries and Union-State disputes
Rajya Sabha	Articles 80, 249, 312	State representation and special federal powers

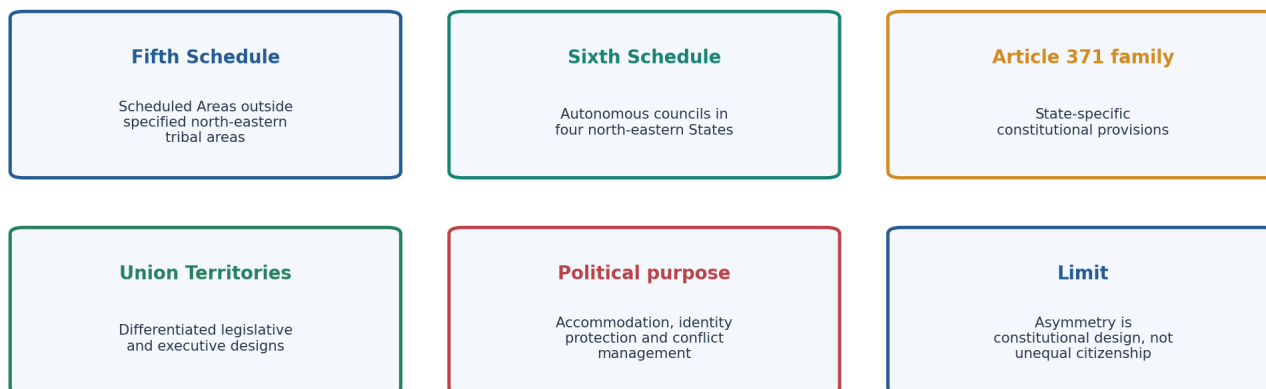
GST Council after Union of India v. Mohit Minerals (2022)

- [FACT] GST Council recommendations are not binding commands on Parliament or State legislatures.
- [FACT] Article 246A gives simultaneous GST legislative power within its scheme.

- [ANALYSIS] The Council works through political persuasion, structured voting and the need for harmonisation: cooperative federalism is dialogic, not hierarchical.
- [LIMIT] “Not binding” does not mean irrelevant; departure can create political, administrative and market costs.

10. Asymmetric federalism

Asymmetry protects unity through differentiated arrangements



Differentiated constitutional arrangements accommodate unequal histories and needs.

- [FACT] Symmetric federalism gives constituent units substantially similar constitutional powers; asymmetric federalism constitutionally differentiates them.
- [FACT] India's asymmetry appears through the Fifth and Sixth Schedules, Article 371 and related provisions, special arrangements for some Union Territories, and differentiated legislative fields.
- [ANALYSIS] Asymmetry is an integration device: it permits common citizenship while protecting distinct institutions, land relations, customary practices or administrative needs.
- [LIMIT] Asymmetry is not the same as arbitrary discrimination. Its legitimacy rests on constitutional text, purpose and equal-citizenship limits.

Fifth and Sixth Schedule distinction

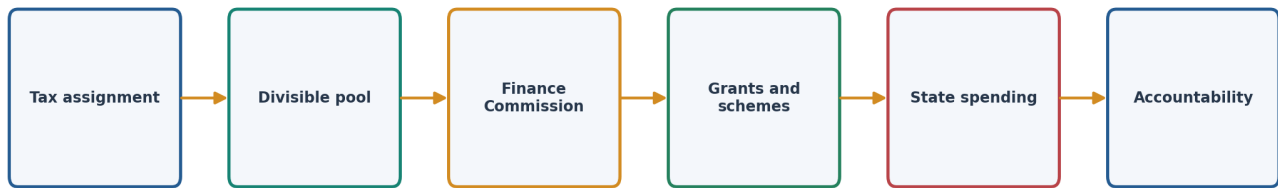
Fifth Schedule	Sixth Schedule
Scheduled Areas in States other than the four Sixth Schedule States	Tribal areas in Assam, Meghalaya, Tripura and Mizoram
Governor and Tribes Advisory Council architecture	Autonomous District and Regional Councils
Protective administration and modification of law	Greater local legislative, judicial and administrative space

Jammu and Kashmir caution

- [CURRENT] The post-2019 constitutional and territorial arrangement must be described through current law, not the former Article 370 framework as if still operational.
- [LIMIT] The full legal chronology and Supreme Court decision belong to the dedicated Jammu and Kashmir topic; here it illustrates that territorial and asymmetric design can be constitutionally reconfigured and contested.

11. Fiscal federalism

Fiscal-federal chain



Fiscal federalism links tax authority, devolution, grants, expenditure and accountability.

Structural problem: vertical fiscal imbalance

- [FACT] The Union possesses broad and productive tax bases, while States carry major expenditure responsibilities in health, police, agriculture, local infrastructure and welfare implementation.
- [ANALYSIS] Transfers are therefore not charity; they are a structural feature of the constitutional division of revenue and responsibility.

Instruments

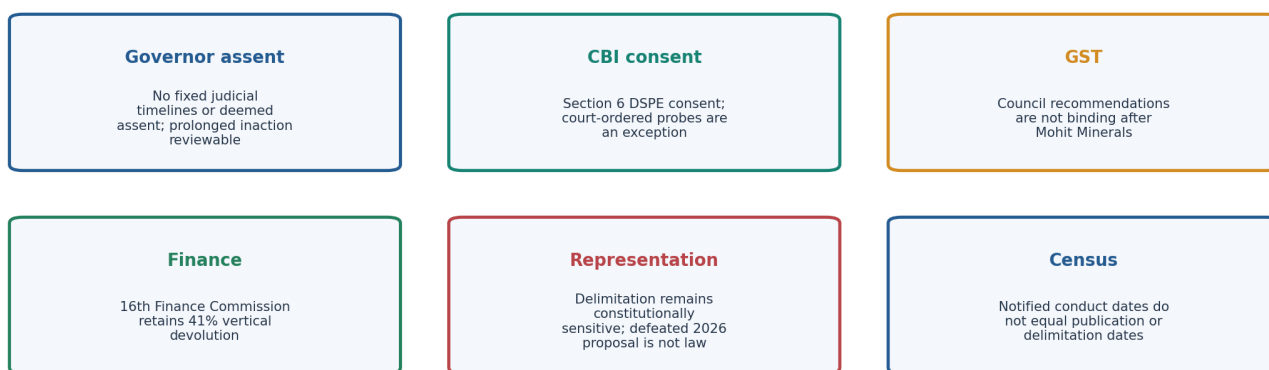
Instrument	Federal role	Risk
Tax assignment	Gives each level own-source revenue	Unequal bases
Tax devolution	Shares divisible-pool taxes	Formula conflict
Finance Commission grants	Addresses needs and externalities	Conditionality and predictability
Centrally sponsored schemes	Supports national priorities	One-size design and State fiscal burden
GST	Common market with pooled tax sovereignty	Rate autonomy and compensation disputes
Cesses and surcharges	Union revenue outside divisible pool under current scheme	States argue effective share is compressed

16th Finance Commission current control

- [CURRENT] The Commission's 2026-31 award retains States' vertical share at **41% of the divisible pool**.
- [CURRENT] Its horizontal formula combines equity, population, demographic performance, area, forest/ecology and contribution-related considerations.
- [LIMIT] The detailed weights and grant architecture belong to Polity 29; in this chapter use the award to show that fiscal federalism balances **equalisation, performance and political legitimacy**.

12. Representational federalism and delimitation

Live federal-friction map - controlled to 16 August 2026



Current federal friction spans assent, investigation, GST, finance, representation and census-linked uncertainty.

Rajya Sabha and demographic representation

- [FACT] Rajya Sabha represents States but not equally; Fourth Schedule allocation broadly reflects population.
- [FACT] Lok Sabha seat allocation and constituency readjustment are governed by Articles 81 and 82, subject to constitutional freeze provisions.
- [ANALYSIS] Population control creates a federal fairness dilemma: equal vote value points toward updated population, while rewarding demographic performance points toward protecting relative representation of lower-growth States.

2026 proposal: use only as a defeated proposal

- [CURRENT] The Constitution (131st Amendment) Bill, 2026 and connected delimitation Bills were introduced on **16 April 2026** and the constitutional Bill was defeated on **17 April 2026**, receiving **298 votes in favour and 230 against**, short of the special-majority requirement.
- [LIMIT] The proposed Lok Sabha ceiling of 850 belongs only to the defeated Bill. It is not the current constitutional ceiling and creates no precedent.
- [CURRENT] Census 2027 has notified enumeration phases, but conduct/reference dates are not publication dates.
- [LIMIT] No delimitation date, State-wise seat projection or election date for operational women's reservation should be asserted.

Safe analytical frame

1. **Democratic equality:** constituencies should not become indefinitely unequal.
2. **Federal fairness:** States that achieved population stabilisation should not perceive political punishment.
3. **House capacity:** a larger House can reduce constituency size but needs physical and procedural redesign.
4. **Women's representation:** Article 334A creates a census-delimitation sequence; commencement is not the same as operational reservation.
5. **Process legitimacy:** broad consultation matters because representation changes the Union's political balance.

13. Current federal-friction controls

Governor assent after the 20 November 2025 advisory opinion

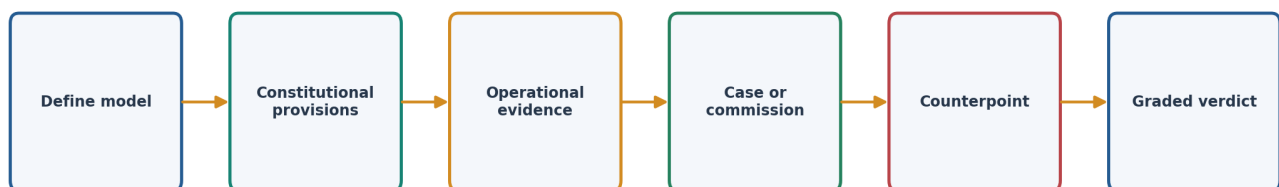
- [FACT] Courts cannot prescribe fixed timelines for the Governor or President under Articles 200-201.
- [FACT] Deemed assent is constitutionally impermissible.
- [FACT] Prolonged unexplained inaction can attract limited judicial intervention directing the authority to act, without dictating the choice.
- [ANALYSIS] The current doctrine protects constitutional discretion while rejecting a pocket veto by silence.
- [LIMIT] Do not use the superseded April 2025 timeline/deemed-assent position as current law.

CBI and State consent

- [FACT] Section 6 of the Delhi Special Police Establishment Act, 1946 requires State consent for DSPE/CBI exercise of powers in a State.
- [FACT] Withdrawal of general consent ordinarily means fresh cases require case-specific consent.
- [FACT] High Courts and the Supreme Court can order a CBI investigation without State consent under constitutional jurisdiction.
- [CURRENT] *State of West Bengal v. Union of India* (2024) rejected the Union's preliminary maintainability objection to West Bengal's Article 131 suit; it did **not** finally decide the merits of every post-withdrawal investigation.
- [ANALYSIS] The controversy demonstrates confrontational federalism through courts rather than extra-constitutional resistance.

Answer-writing framework

A high-scoring federalism answer spine



A strong answer moves from definition to provisions, evidence, authority, counterpoint and a graded verdict.

Model -> constitutional allocation -> operating mode -> case/institution -> tension -> reform -> graded verdict

Best conclusion: India is neither administratively unitary nor a compact federation. It is a constitutionally federal, Union-weighted and politically bargaining system whose legitimacy depends on converting superior Union capacity into consultation rather than domination.

PART II - Optional Advanced enrichment

14. Advanced classifications and scholars - optional

Scholar toolkit

Scholar / label	Use	Limit
K.C. Wheare - quasi-federal / unitary features	Opens the strong-Centre debate	Do not stop at the label; Basic Structure and practice matter
Granville Austin - cooperative federalism	Explains shared national transformation	Cooperation may coexist with conflict
Morris-Jones - bargaining federalism	Captures negotiated politics	Bargaining power is unequal
Paul Appleby - extremely federal	Corrects excessive quasi-federal shorthand	A historical analytical view, not doctrine
Ivor Jennings - federation with strong centralising policy	Connects design to nation-building	Avoid treating all central policy as anti-federal
Louise Tillin - asymmetry and territorial accommodation	Adds contemporary analytical depth	Use only after constitutional examples

Four deeper ideas

1. **Political federalism:** party competition, coalition arithmetic and regional parties can decentralise or centralise actual power without textual amendment.
2. **Executive federalism:** much coordination occurs among executives and officials, which can improve speed but weaken legislative transparency.
3. **Multi-level federalism:** local governments complicate a simple Union-State binary even though Parts IX and IX-A do not create co-equal sovereign units.
4. **Dialogic federalism:** councils, commissions, courts and elections create repeated exchanges rather than one final allocation of every dispute.

National parties and regional parties

- [ANALYSIS] The 2022 GS-II proposition is broadly plausible as an incentive pattern, not an ideological law.
- National parties controlling the Union may prefer uniformity and central leverage; regional parties may seek fiscal and administrative autonomy.
- Counterevidence matters: national parties demand autonomy when in State opposition; regional parties can centralise within their States; coalition governments led by national parties strengthened State bargaining.
- Best verdict: **institutional location and electoral incentives often explain federal preference better than party label alone.**

15. Reform agenda: strengthen federal capacity without disabling the Union

Problem	Reform direction	Constitutional purpose
Irregular consultation	Regular Inter-State Council agenda and follow-up	Shared rule
Governor conflict	Transparent reasons, constitutional conventions and prompt action	Neutral headship
Fiscal mistrust	Predictable transfers and transparent scheme consultation	State planning autonomy
CBI conflict	Clear statutory accountability and consent protocols	Police autonomy plus national investigation
GST friction	Better dispute resolution and publication of reasoned decisions	Cooperative tax governance
Article 356 risk	Continue Bommai discipline and floor-test priority	Elected State government
Capacity inequality	Equalisation plus outcome-linked support	Meaningful, not merely formal autonomy
Delimitation conflict	Broad federal bargain before redistribution	Democratic equality plus federal legitimacy

Prelims trap grid

Federal Not a compact of sovereign States	State autonomy Real but constitutionally limited	Rajya Sabha Federal chamber, not equal State representation
Residuary power Union, unlike the US model	GST Council Recommendations, not binding commands	Governor delay No deemed assent under current controlling opinion

The trap grid distinguishes constitutional rules from common overstatements.

Solved topic-specific MCQs

Routed PYQs with model solutions

PYQ 1 - UPSC GS-II 2020, Q3 - direct

Question: How far do you think cooperation, competition and confrontation have shaped the nature of federation in India? **10 marks | 150 words**

Model solution

Indian federalism is constitutionally divided but politically dynamic. Cooperation, competition and confrontation operate simultaneously rather than as successive phases.

Cooperation appears in the GST Council, Finance Commission transfers, disaster response and centrally supported programmes. These institutions recognise interdependence: the Union has scale and resources, while States possess implementation capacity and local knowledge.

Competition arises when States seek investment, improve service outcomes and innovate in welfare or regulation. It can diffuse good practice, but unequal capacity may widen regional gaps.

Confrontation occurs over Governor assent, CBI consent, tax devolution, cesses, scheme conditions and river waters. Such conflict need not destroy federalism if channelled through councils, Parliament, courts and elections.

S.R. Bommai makes federalism a Basic Structure feature, limiting coercive centralisation. Granville Austin's cooperative model states the aspiration, while Morris-Jones's bargaining federalism better describes operation.

Thus, the Indian federation is predominantly cooperative and bargaining, sharpened by competition and periodically tested by confrontation. Its success lies not in eliminating conflict but in keeping conflict constitutional and negotiable.

PYQ 2 - UPSC GS-II 2021, Q11 - cross-owned

Question: The jurisdiction of the Central Bureau of Investigation regarding lodging an FIR and conducting a probe within a particular State is being questioned by various States. However, the power of States to withhold consent to the CBI is not absolute. Explain with special reference to the federal character of India. **15 marks | 250 words**

Model solution

Police and public order are State subjects, while the CBI derives investigative authority from the Delhi Special Police Establishment Act, 1946. Section 6 therefore requires State consent before DSPE personnel exercise powers within a State.

States commonly grant **general consent**. Its withdrawal means the CBI ordinarily needs case-specific consent for fresh cases. This protects territorial police autonomy and prevents a central agency from becoming an unrestricted parallel State police.

The power is not absolute for three reasons. First, the Supreme Court under Article 32 and High Courts under Article 226 may order a CBI probe without State consent to protect fundamental rights and fair investigation. Second, withdrawal does not automatically invalidate every investigation validly begun earlier. Third, the legal effect can depend on the territorial acts, accused, offence and terms of existing consent.

In *State of West Bengal v. Union of India* (2024), the Supreme Court held West Bengal's Article 131 suit maintainable against the Union's preliminary objection. The merits remained for adjudication; the ruling should not be overstated as a final ban on all CBI action.

Federalism here requires balance. State consent protects police autonomy; constitutional-court power protects justice where State investigation fails; national offences may require coordination. A clear CBI statute, transparent consent protocols and judicially supervised exceptions would reduce political confrontation.

Thus, consent is a federal safeguard, not an immunity from constitutional judicial power.

PYQ 3 - UPSC GS-II 2022, Q13 - cross-owned

Question: While the national political parties in India favour centralisation, the regional parties are in favour of State autonomy. Comment. **15 marks | 250 words**

Model solution

The proposition captures an important tendency but is too absolute. Federal preferences often follow institutional position and electoral incentives more than permanent ideology.

National parties controlling the Union may favour centralisation because uniform policy, national security, macroeconomic management and common markets strengthen their governing programme. Constitutional tools include residuary power, centrally sponsored schemes, Union directions, All-India Services and Parliament's exceptional access to State subjects.

Regional parties derive legitimacy from State-specific identities and interests. They commonly demand larger tax devolution, fewer scheme conditions, protection from partisan Governor action, stronger Inter-State Council consultation and restraint in deploying central agencies. Coalition governments from 1989 onward often increased their bargaining power at the Union.

However, counterevidence qualifies the claim. National parties seek State autonomy when they govern a State but oppose the Union. Regional parties may centralise authority within their own States. National-party-led coalitions have accommodated regional demands, while regional parties participating in Union government may support national uniformity. GST also shows parties accepting pooled sovereignty for a common market.

The Constitution itself combines both impulses: State List autonomy and federal amendment safeguards coexist with a strong Union and emergency powers. *S.R. Bommai* prevents the political majority at the Centre from erasing the federal basic structure.

Therefore, party type influences federal preference, but control of office, coalition arithmetic and issue-specific interests explain behaviour more reliably than the national/regional label alone.

PYQ 4 - UPSC Prelims 2021, Q86 - direct

Question: Which one of the following in Indian polity is an essential feature that indicates that it is federal in character?

A. The independence of judiciary is safeguarded B. The Union Legislature has elected representatives from constituent units C. The Union Cabinet can have elected representatives from regional parties D. Fundamental Rights are enforceable by Courts of Law

Answer: A. INFERRED ANSWER - NOT OFFICIALLY VERIFIED.

An independent judiciary is essential to interpret the Constitution and adjudicate competence disputes between two levels. The other options can exist in non-federal systems or do not create constitutional autonomy.

PYQ 5 - UPSC Prelims 2023, Q32 - direct

Question: Consider the following statements:

1. In India, prisons are managed by State Governments with their own rules and regulations for day-to-day administration.
2. The Prisons Act, 1894 kept the subject of prisons under the control of Provincial Governments.

Which one of the following is correct in respect of the above statements?

A. Both Statement-I and Statement-II are correct and Statement-II is the correct explanation for Statement-I B. Both Statement-I and Statement-II are correct, but Statement-II is not the correct explanation for Statement-I C. Statement-I is correct, but Statement-II is incorrect D. Statement-I is incorrect, but Statement-II is correct

Answer: B. INFERRED ANSWER - NOT OFFICIALLY VERIFIED.

Prisons are a State List subject under Entry 4, explaining current State management. The colonial Act also placed administration with provincial governments, but it is not the constitutional reason for the present federal allocation.

Original hard MCQ set - strict A -> B -> C -> D rotation

OM1. Federal essence

Which proposition best defines a federation?

A. The Constitution protects authority of general and regional governments in assigned spheres. B. A treaty league alone is federal. C. Courts must always be dual. D. Regional governments receive revocable powers from the Union.

Answer: A.

Constitutionally protected distribution, not mere administrative devolution, is the controlling test.

OM2. Holding together

India is best described as:

A. a confederation of sovereign States. B. a holding-together federation with a strong Union. C. a coming-together compact with a secession right. D. a legally unitary State with no State autonomy.

Answer: B.

India constitutionally distributes power to govern an existing diverse polity; States did not create the Union by compact.

OM3. Article 1

The phrase 'Union of States' most safely indicates that:

A. State governments are Union departments. B. the Seventh Schedule is optional. C. the Union is not the result of an agreement among sovereign States with a secession right. D. State boundaries can never change.

Answer: C.

The expression rejects compact/secession theory while coexisting with real constitutional federalism.

OM4. Federal feature

Which combination most directly protects federal allocation?

A. Single citizenship and emergency provisions B. Governor appointment and All-India Services C. Parliamentary government and collective responsibility D. Written supreme Constitution, division of powers and independent judiciary

Answer: D.

These features make the allocation authoritative and judicially enforceable.

OM5. Rajya Sabha

Which statement is correct?

A. Rajya Sabha is a federal chamber, but States do not receive equal representation. B. Each State has two members. C. Rajya Sabha can amend the Seventh Schedule alone. D. Union Territories have no possible representation.

Answer: A.

Fourth Schedule allocation broadly follows population; India does not copy US Senate equality.

OM6. Residuary power

Residuary legislative power in India belongs to:

A. State legislatures collectively. B. Parliament under Article 248 and Union Entry 97. C. the Supreme Court. D. the Inter-State Council.

Answer: B.

This is a centralising feature and differs from several classic federations.

OM7. List counts

Which is the standard current examination statement?

A. Union 97, State 66, Concurrent 47 B. Union 98, State 59, Concurrent 52 C. Union 100, State 61, Concurrent 52 D. Union 100, State 60, Concurrent 50

Answer: C.

Use 100/61/52; omitted and inserted numbering explains alternative literal counts.

OM8. Article 246

Which statement is correct?

A. State List always overrides Union List. B. Concurrent power belongs only to Parliament. C. Article 246 contains no hierarchy. D. Union List power operates notwithstanding Concurrent and State clauses.

Answer: D.

Article 246(1) uses a notwithstanding clause; State power is expressly subject to clauses (1) and (2).

OM9. Pith and substance

The doctrine primarily asks:

A. What is the true nature and character of the law? B. Was presidential assent politically wise? C. Did Parliament consult every State? D. Is the law popular?

Answer: A.

A law within competence survives incidental encroachment into another field.

OM10. Article 254

A State law repugnant to an existing parliamentary law on a Concurrent subject may operate in that State if:

A. Rajya Sabha alone approves it. B. it is reserved for and receives Presidential assent. C. the Governor signs without reservation. D. the Inter-State Council recommends it.

Answer: B.

Parliament can subsequently override the assented State law.

OM11. Article 249

Parliament may legislate on a State subject in national interest after:

A. a simple Lok Sabha resolution. B. every State consents. C. Rajya Sabha passes the prescribed two-thirds present-and-voting resolution. D. the Chief Justice certifies necessity.

Answer: C.

The States' chamber supplies the special federal trigger.

OM12. Article 252

Which statement is correct about a law under Article 252?

A. It automatically applies to every State. B. A requesting State may repeal it unilaterally. C. It requires an Article 352 emergency. D. Parliament enacts on State request and Parliament alone can amend or repeal it.

Answer: D.

Other States may later adopt the law.

OM13. Article 253

Article 253 permits Parliament to:

A. implement treaties even where legislation touches a State subject. B. suspend judicial review. C. change State boundaries without Article 3. D. abolish Rajya Sabha.

Answer: A.

Treaty implementation is an express route into the State field, subject to the Constitution.

OM14. Bommai

The strongest federal proposition from S.R. Bommai is:

A. Article 356 is non-justiciable. B. federalism is Basic Structure and Article 356 material is reviewable. C. States have a right to secede. D. Governors decide majority finally in private.

Answer: B.

Bommai constitutionalises federalism and favours floor determination of disputed majority.

OM15. Kuldip Nayar

Kuldip Nayar is safely used to show that:

A. Rajya Sabha is not a federal chamber. B. State representation is unconstitutional. C. a State residence requirement for Rajya Sabha candidature is not indispensable to Indian federalism. D. all States require equal seats.

Answer: C.

The judgment recognises India's distinctive, not textbook-identical, federal design.

OM16. Cooperative federalism

Which statement is most precise?

A. It eliminates State autonomy. B. It requires unanimous agreement. C. It excludes competition. D. It denotes joint action while preserving constitutionally distinct governments.

Answer: D.

Cooperation addresses interdependence; it does not merge the two levels.

OM17. Competitive federalism

A central benefit of competitive federalism is:

A. policy innovation and diffusion among States. B. automatic equalisation of all capacities. C. abolition of transfers. D. removal of constitutional limits.

Answer: A.

Competition can improve outcomes but may widen capacity gaps.

OM18. Morris-Jones

The label 'bargaining federalism' is associated with:

A. K.C. Wheare. B. Morris-Jones. C. B.R. Ambedkar. D. A.V. Dicey.

Answer: B.

It captures negotiated Union-State political operation.

OM19. GST Council

After Mohit Minerals, GST Council recommendations are:

A. binding constitutional commands. B. binding only on States. C. recommendatory, within a system requiring collaboration. D. irrelevant to GST law.

Answer: C.

The Court preserved simultaneous legislative authority and dialogic cooperation.

OM20. Inter-State Council

Which pairing is correct?

A. Article 280 - Inter-State Council B. Article 279A - Zonal Councils C. Article 312 - Finance Commission D. Article 263 - Inter-State Council

Answer: D.

Zonal Councils are statutory; the Finance Commission is Article 280.

OM21. Asymmetry

Asymmetric federalism means:

A. constitutionally differentiated arrangements for some units or regions. B. unequal citizenship by default. C. no judicial review. D. temporary President's Rule.

Answer: A.

India uses asymmetry for accommodation through Schedules, Article 371 provisions and differentiated UT designs.

OM22. Sixth Schedule

The Sixth Schedule principally applies to tribal areas in:

A. all north-eastern States. B. Assam, Meghalaya, Tripura and Mizoram. C. only Assam. D. every Fifth Schedule State.

Answer: B.

It creates autonomous council architecture in the four named States.

OM23. Vertical imbalance

Vertical fiscal imbalance refers to:

A. equal revenue and spending at both levels. B. only horizontal inequality among States. C. mismatch between revenue capacity and expenditure responsibilities across levels. D. a conflict within one State budget.

Answer: C.

States bear substantial spending duties while the Union controls broad tax bases.

OM24. 16th Finance Commission

Which current statement is used in this package?

A. States receive 50% of all Union revenue. B. Cesses are automatically divisible. C. The Finance Commission was abolished. D. The 2026-31 vertical share remains 41% of the divisible pool.

Answer: D.

Divisible pool is narrower than gross Union tax revenue because cesses and surcharges are excluded.

OM25. Governor assent

Under the controlling 20 November 2025 opinion:

A. no fixed judicial timelines or deemed assent exist, but prolonged inaction can invite a direction to act. B. every Bill is deemed assented after three months. C. courts choose assent or reservation. D. the Governor may keep a Bill forever without review.

Answer: A.

Judicial intervention is limited: require action, not dictate the constitutional option.

OM26. CBI consent

Which is correct?

A. State consent can defeat a Supreme Court-ordered probe. B. Section 6 DSPE consent is ordinarily required, but constitutional courts can order CBI investigation. C. Police is in the Union List. D. Withdrawal automatically voids every earlier proceeding.

Answer: B.

Consent protects federal police autonomy but is not absolute against constitutional judicial power.

OM27. Delimitation proposal

The 850-seat figure discussed in 2026 should be described as:

A. the current Article 81 ceiling. B. an Election Commission notification. C. a proposal in the defeated 131st Amendment Bill, not law. D. a Supreme Court direction.

Answer: C.

Proposal text must never be converted into current constitutional fact.

OM28. Census control

Which statement is safest as of the control date?

A. Enumeration dates are final publication dates. B. Delimitation must occur in 2027. C. Women's reservation is already operational. D. Notified census conduct dates do not establish publication, delimitation or election dates.

Answer: D.

The constitutional triggers depend on later steps; avoid invented timelines.

Remedial MCQ loop - strict A -> B -> C -> D rotation

RM1. Federal versus unitary

What makes State power federal rather than devolved?

A. Its constitutional protection. B. The size of the State. C. A Governor's speech. D. A central grant.

Answer: A.

Constitutional origin and protection distinguish autonomy from revocable delegation.

RM2. Residuary power

Who holds residuary legislative power?

A. States B. Parliament C. Rajya Sabha alone D. President personally

Answer: B.

Article 248 and Union Entry 97 place it with Parliament.

RM3. State List entry

Which route begins with resolutions by two or more State legislatures?

A. Article 249 B. Article 250 C. Article 252 D. Article 253

Answer: C.

Article 252 is consensual State initiation followed by parliamentary law.

RM4. Repugnancy

Article 254 principally concerns conflict on:

A. Union List B. State List C. residuary subjects D. Concurrent List

Answer: D.

It is not a general conflict clause for all Union-State disputes.

RM5. Bommai

Which is correct?

A. Federalism is Basic Structure. B. Article 356 is immune from review. C. Governors decide majority conclusively. D. States can secede.

Answer: A.

Bommai supplies the core constitutional protection.

RM6. GST Council

Its recommendations are:

A. binding on States only B. recommendatory C. judicial orders D. constitutional amendments

Answer: B.

Mohit Minerals confirms recommendatory status.

RM7. Governor assent

Which current proposition is correct?

A. Deemed assent after one month B. Courts prescribe one universal deadline C. No deemed assent, but prolonged inaction may be reviewed D. No review of inaction is possible

Answer: C.

Use the November 2025 controlling opinion.

RM8. 2026 delimitation package

Its proposed numbers are:

A. already in Article 81 B. binding after introduction C. approved by the Supreme Court D. defeated proposal details, not current law

Answer: D.

Always preserve the proposal/not-law label.

Original Mains practice with examiner-grade models

M1. 10 marks | 150 words

Question: Distinguish federalism from administrative decentralisation and explain why India remains federal despite a strong Union.

Demand decoding

- Define the legal test, then show both State autonomy and Union tilt.
- Use provisions plus one case; avoid label-only answers.

Model solution

Federalism constitutionally protects authority of two levels, whereas administrative decentralisation transfers powers that the superior government can ordinarily withdraw by law.

India satisfies the federal test through a written supreme Constitution, dual polity, Seventh Schedule distribution, selective amendment ratification, an independent judiciary and State representation in Rajya Sabha. States legislate directly on police, public health, agriculture and other List II subjects; their authority is not ordinary Union delegation.

The Union is nevertheless stronger. Parliament holds residuary power, can enter the State field under Articles 249, 250, 252, 253 and 356, reorganise States under Articles 2-4, and operates through integrated institutions, All-India Services and greater fiscal capacity.

These features qualify rather than destroy federalism because they arise from the Constitution, remain limited by rights and judicial review, and operate within political safeguards. *S.R. Bommai* identifies federalism as Basic Structure and subjects Article 356 to review.

Thus, India is not classically balanced federalism; it is a holding-together, Union-weighted federation. The decisive point is constitutionally protected State power, not numerical equality between Union and States.

M2. 10 marks | 150 words

Question: Explain how the doctrines of pith and substance, repugnancy and harmonious construction maintain the federal distribution of legislative power.

Model solution

The Seventh Schedule distributes subjects, but modern laws inevitably overlap. Constitutional doctrines preserve workable federalism without making every incidental encroachment fatal.

Pith and substance identifies a law's true nature. If its dominant character lies within the enacting legislature's field, incidental impact on another List does not invalidate it. **Harmonious construction** reads entries broadly yet seeks to reconcile them so that each retains meaningful operation. **Repugnancy**, principally under Article 254, resolves an irreconcilable conflict between parliamentary and State laws on a Concurrent subject: parliamentary law ordinarily prevails. A reserved State law receiving Presidential assent may operate within that State, though Parliament can later override it.

Together, the doctrines combine autonomy with national coherence. Pith and substance prevents rigid compartmentalisation; harmonious construction reduces avoidable collision; repugnancy supplies a final rule where coexistence is impossible.

The qualification is important: Article 254 is not a universal conflict rule, and judicial interpretation cannot create legislative competence absent from the Constitution.

M3. 15 marks | 250 words

Question: Indian federalism is cooperative in design, bargaining in operation and sometimes coercive in effect. Discuss.

Model solution

India's Constitution combines separate spheres with institutions requiring continuing interaction. The resulting federation cannot be captured by one adjective.

Cooperative in design: The GST Council, Finance Commission, Inter-State Council, Rajya Sabha's Articles 249 and 312 roles, centrally supported programmes and disaster coordination require joint action. Granville Austin's cooperative federalism captures this nation-building architecture.

Bargaining in operation: Union-State outcomes depend on party alignment, coalition arithmetic, Finance Commission submissions, scheme negotiations and fiscal capacity. Morris-Jones's label explains why formal Union superiority does not always determine practical outcomes.

Sometimes coercive in effect: Conditional grants, Union directions, Governor controversies, deployment of central agencies and large vertical fiscal imbalance can narrow State choice. Cesses and scheme contributions may increase perceived dependence. Yet not every national standard is coercive; common markets, rights and externalities can justify coordination.

Confrontation is also constitutionalised. States litigate under Article 131, withdraw CBI general consent, contest tax arrangements and mobilise politically. *S.R. Bommai* ensures that Union strength cannot erase the federal basic structure. *Mohit Minerals* similarly treats the GST Council as recommendatory, preserving legislative autonomy within collaboration.

Therefore, Indian federalism is a negotiated continuum. Cooperation is its institutional aspiration, bargaining its daily method and coercion its recurrent risk. Regular consultation, transparent transfers and neutral constitutional offices are needed to keep Union capacity from becoming domination.

M4. 15 marks | 250 words

Question: Critically examine the role of the Governor in India's federal system in the light of the current law on assent to State Bills.

Model solution

The Governor links constitutional headship, State government and the Union, making the office both necessary and conflict-prone.

The federal concern begins with appointment by the President and tenure during presidential pleasure. Discretion in government formation, reports under Article 356 and reservation of Bills can be perceived as Union leverage, especially under opposing parties. Delayed assent can disable a State legislature without openly rejecting its policy.

The controlling Constitution Bench advisory opinion of 20 November 2025 recalibrates Article 200. Courts cannot impose fixed timelines or create deemed assent, and they cannot substitute their own choice for the Governor's. However, prolonged unexplained inaction is not a constitutional pocket veto; limited judicial intervention may require the Governor to act without dictating assent, return, withholding or reservation.

The position protects decisional space but creates a higher duty of constitutional statesmanship. Reasons, prompt communication and fidelity to the elected government's legislative mandate are central to legitimacy. *S.R. Bommai* also requires gubernatorial action affecting State government to remain reviewable and ordinarily favours floor testing of majority.

Reform should emphasise politically detached appointments, consultation with the Chief Minister, secure conventions, publicly reasoned action and compliance with Sarkaria/Punchhi norms.

Thus, the Governor should be a constitutional sentinel and mediator, not a parallel executive or partisan gatekeeper. Federal balance depends as much on convention and restraint as on justiciable rules.

M5. 20 marks | 250-300 words

Question: Evaluate whether fiscal federalism in India provides States meaningful autonomy or primarily produces transfer dependence.

Model solution

Meaningful federal autonomy requires both legal competence and usable fiscal capacity. India gives States major responsibilities but combines them with substantial dependence on Union transfers.

Autonomy: States possess assigned taxes, borrow within constitutional rules, set expenditure priorities and receive a constitutionally structured share of the divisible pool. The Finance Commission is an independent periodic mechanism rather than a discretionary executive grant alone. GST gives States a voice in common-market taxation through the

GST Council. The 16th Finance Commission retains 41% vertical devolution for 2026-31.

Dependence: The Union controls broad and buoyant tax bases, while States finance health, police, agriculture and welfare delivery. Cesses and surcharges lie outside the divisible pool, reducing the effective shareable base. Centrally sponsored schemes may impose design conditions and matching contributions. Unequal State tax capacity also means formal autonomy yields unequal outcomes.

Balancing devices: Horizontal devolution pursues equalisation through need, population, demographic performance, area, ecology and contribution-related criteria. Grants can address externalities and local-body capacity. *Mohit Minerals* protects legislative autonomy by holding GST Council recommendations non-binding.

However, dependence is not inherently anti-federal: redistribution and national standards can secure equal citizenship. It becomes coercive when conditions are opaque, consultation weak or States cannot exit without sacrificing essential services.

India therefore has constitutionally mediated interdependence, not fiscal independence. Greater transparency on cesses, predictable scheme shares, stronger State tax administration, a robust GST dispute mechanism and regular intergovernmental consultation would convert transfer dependence into accountable shared finance.

M6. 20 marks | 250-300 words

Question: Delimitation after a new Census presents a conflict between democratic equality and federal fairness. Analyse.

Model solution

Delimitation seeks broadly equal population representation, but long-term demographic divergence turns that democratic principle into a federal conflict.

Democratic-equality case: Constituency populations should not diverge indefinitely. Updated allocation can reduce unequal vote weight, improve constituency manageability and reflect migration and urbanisation. A larger House may also lower the citizen-representative ratio.

Federal-fairness concern: States that successfully reduced fertility fear losing relative influence to higher-growth States. Representation affects Union governments, fiscal bargaining and constitutional amendment politics. A purely population-driven redistribution may therefore appear to punish policy success and alter the original political balance.

Constitutional setting: Articles 81 and 82 govern representation and readjustment, while constitutional amendments created the seat freeze. Rajya Sabha already uses unequal State representation, so Lok Sabha change affects both popular and federal power. Article 334A also links operational women's reservation to a post-commencement census and subsequent delimitation.

Current control: The 2026 constitutional-delimitation package was defeated; its proposed 850-seat ceiling is not law. Census conduct dates do not supply a publication or delimitation date, and State-wise seat projections are speculative.

Possible principles: increase total seats to reduce zero-sum loss; protect a floor of relative State representation for a transition; reward demographic performance through transparent criteria; strengthen Rajya Sabha's federal role; and secure broad inter-State consultation before amendment.

The solution cannot be arithmetic alone. Democratic equality requires updated representation, but federal legitimacy requires that population stabilisation not translate into abrupt political dispossession. A negotiated constitutional bargain is therefore essential.

M7. 20 marks | 250-300 words

Question: Does the combination of regional parties, judicial review and intergovernmental councils adequately counterbalance India's centralising constitutional design?

Model solution

India's Constitution gives the Union substantial power, but political and institutional safeguards often decentralise its operation.

Regional parties articulate State-specific fiscal, linguistic and developmental interests. Coalition eras enabled them to bargain over ministries, schemes and national policy. Yet their influence depends on electoral arithmetic; they may also centralise power within their States.

Judicial review supplies a legal boundary. *S.R. Bommai* makes federalism Basic Structure and reviews Article 356; competence doctrines protect State laws from invalidation for incidental overlap; Article 131 provides an original forum for specified Union-State disputes. Courts, however, cannot replace continuous political negotiation and may defer in policy-heavy fields.

Councils and commissions institutionalise shared rule. The GST Council, Finance Commission, Inter-State Council and Zonal Councils permit information exchange, bargaining and coordination. *Mohit Minerals* preserves autonomy by treating GST Council recommendations as recommendatory. Weaknesses include irregular meetings, executive dominance, non-binding recommendations and unequal fiscal leverage.

These safeguards are meaningful but uneven. A single-party Union majority reduces coalition bargaining; councils can become consultative rituals; litigation is slow and adversarial. Governors, central agencies, conditional schemes and cesses can still generate coercive effects.

Therefore, the counterbalance is adequate to prevent easy destruction of federalism but not always adequate to ensure equal participation. Regular council meetings, reasoned decisions, stronger parliamentary scrutiny, neutral Governors, transparent transfers and better State capacity are required. India's federal equilibrium is maintained through repeated political contestation, not by constitutional text alone.

Final consolidated register notes

Federal identity

- Federation = constitutionally protected Union and regional authority, each acting directly in assigned spheres.
- Unitary devolution = regional power legally revocable by the centre.
- Confederation = treaty association of sovereign members; not India.
- India = holding-together, Union-weighted federation; Article 1 "Union of States."
- No compact-based secession right; Parliament can reorganise States through Articles 2-4.

Seven federal features

1. Dual polity.
2. Written Constitution.
3. Seventh Schedule division.
4. Constitutional supremacy.
5. Selective rigidity and State ratification.
6. Independent judiciary.
7. Bicameral State representation.

Centralising recall

- Strong Union List; residuary power with Parliament.
- Parliament enters State field: 249, 250, 252, 253, 356.
- State reorganisation by Parliament.
- Single Constitution and citizenship.
- Integrated judiciary, CAG and Election Commission.
- Governors and All-India Services.
- Union directions and emergency provisions.
- Union fiscal strength and transfer dependence.
- Rajya Sabha representation unequal by State.

Legislative architecture

Provision	Recall
245	Territorial extent; extra-territorial parliamentary operation
246	Union/Concurrent/State hierarchy
246A	GST special competence
248 + UL 97	Residuary power with Parliament
249	Rajya Sabha national-interest route
250	Emergency route; six-month tail
252	State-request route; Parliament amends/repeals
253	Treaty implementation
254	Concurrent repugnancy and Presidential-assent exception

- Standard counts: **100 / 61 / 52**.
- Pith and substance = true nature; incidental overlap allowed.
- Colourable legislation = indirect competence evasion invalid.
- Territorial nexus = real connection required.
- Harmonious construction = preserve operation of entries.
- Repugnancy = Concurrent conflict, not universal conflict rule.

Case strip

- *State of West Bengal v Union* (1962): not a compact of sovereign States.
- *Kesavananda* (1973): Basic Structure limitation.
- *Rajasthan v Union* (1977): strong-Union context.
- *S.R. Bommai* (1994): federalism Basic Structure; Article 356 review; floor-test logic.
- *Kuldip Nayar* (2006): residence requirement not indispensable to Indian federalism.
- *Mohit Minerals* (2022): GST Council recommendations not binding.
- *West Bengal v Union* (2024): CBI-consent Article 131 suit maintainable; merits not finally decided by that ruling.

Operating modes

- Cooperative = joint institutions and implementation.
- Competitive = State innovation/investment competition.
- Bargaining = negotiated transfers and political concessions.
- Coercive = superior leverage narrows effective choice.
- Confrontational = litigation, consent withdrawal and political resistance.
- Granville Austin = cooperative; Morris-Jones = bargaining; Wheare = quasi-federal debate.
- Best verdict: modes coexist; institutions must keep conflict constitutional.

Shared-rule institutions

- ISC Article 263.
- Zonal Councils statutory.
- GST Council Article 279A.
- Finance Commission Article 280.
- Rajya Sabha Articles 249 and 312.
- NITI Aayog executive platform.
- Supreme Court legal umpire and Article 131 forum.

Asymmetry

- Fifth Schedule = Scheduled Areas outside four Sixth Schedule States.
- Sixth Schedule = autonomous councils in Assam, Meghalaya, Tripura, Mizoram.
- Article 371 family = State-specific arrangements.
- Differentiated UT design also reflects asymmetry.
- Purpose = accommodation, identity protection and integration; not unequal citizenship.

Fiscal federalism

- Vertical imbalance = Union revenue strength versus State spending responsibilities.
- Instruments = assignment, divisible pool, Finance Commission, grants, schemes, GST.
- 16th FC: 41% of divisible pool for States in 2026-31.
- Cesses/surcharges outside divisible pool are a recurring State grievance.
- Autonomy requires predictable finance, not merely List II competence.

Current control

- Governor assent: 20 Nov 2025 opinion; no fixed judicial timelines, no deemed assent, prolonged inaction reviewable through direction to act.
- CBI: Section 6 DSPE consent ordinarily required; constitutional courts can order probes.
- 131st Amendment/delimitation package: defeated proposal; 850 not law.
- Census enumeration/reference dates are not publication/delimitation dates.
- 106th Amendment commencement does not mean women's reservation is operational.

PYQ routes

- 2020 GS-II Q3: cooperation + competition + confrontation -> simultaneous modes + Bommai verdict.
- 2021 GS-II Q11: Section 6 consent + court exception + federal balance.
- 2022 GS-II Q13: qualified party-incentive thesis.
- 2021 Prelims Q86: independent judiciary as essential federal feature.
- 2023 Prelims Q32: prisons in State List; colonial Act is not constitutional explanation.

Mains answer spines

Nature question: definition -> seven federal -> Union tilt -> Bommai -> qualified classification.

Working question: modes -> institutions -> examples -> coercive risk -> constitutionalised-conflict verdict.

Legislative question: Articles -> Lists -> exceptions -> doctrines -> case -> federal balance.

Current friction: verified status -> constitutional rule -> competing values -> institution/reform -> no speculative date.

Final trap checklist

- Federalism does not require equal State representation.
- "Union of States" does not make States administrative units.
- Residuary power is with Parliament.
- Article 254 principally concerns Concurrent List repugnancy.
- Article 249 uses Rajya Sabha; Article 252 starts with State resolutions.
- Article 253 can reach State subjects for treaty implementation.
- Bommai does not create State sovereignty or secession.
- GST Council recommendations are not binding.
- Governor assent has no current deemed-assent rule.
- Court-ordered CBI investigation does not require State consent.
- Use 100/61/52 standard counts.
- The 2026 850-seat proposal was defeated and is not law.

- Census conduct dates do not prove publication or delimitation dates.
- Core is complete; Advanced scholars are optional enrichment.